Chris Laudando
Laudando & Associates LLC
297 Convair Ave. Ste. 4
Chico, CA 95973
310-968-1178

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U.S. Department of Justice – Antitrust Division
950 Pennsylvania Avenue NW
Washington, DC 20530

Subject: Anticompetitive foreclosure in U.S. farm-inputs technology via exclusionary IP litigation and ecosystem lock-in (Carbon Robotics v. Laudando & Associates, E.D. Cal. No. 2:24-cv-03012)

Complainant:

Laudando & Associates LLC ("L&A"), Chico, California. Founder/President: Chris Laudando. We develop the patent-pending L&Aser™ modular laser-weeding technology (non-chemical weed control) and the AgCeption™ brand of AI/perception tools. We serve growers big & small, as well as small OEMs.

Summary of concern (plain-English):

A well-funded incumbent in laser weeding, Carbon Robotics, is using exclusionary patent litigation to block a new rival (L&A) while the broader farm-inputs ecosystem (seed traits + agrochemicals, and OEM hardware + compute + software) has embargoed cooperation through hub & spoke actions that foreclose entry. The case produced a preliminary injunction in June 2025, effectively removing L&A from the U.S. market during critical commercialization, forcing "technology exile" in Australia, which is offering safe harbor through their National Innovation Visa Program, sponsored by the Australian State, and with cooperation from their Department of Primary Industries.

The practical effect of this scheme is anti-competitive farm consolidation in the United States, as a minimally viable laser weeding monopoly achieved through objectively baseless litigation will raise input costs and reduce non-chemical options for U.S. growers at a time when DOJ and USDA have formally prioritized competition in agricultural inputs (including equipment) under their Sept. 2025 MOU.

We request that DOJ open a civil conduct investigation into (i) exclusionary use of IP to foreclose a rival where the asserted claims do not map to the rival's distinct architecture; (ii) vertical/exclusive arrangements (including compute and OEM restrictions) that create switching penalties and ecosystem foreclosure; and (iii) coordinated industry conduct that predictably maintains the GM-seed trait & chemical-spray paradigm by suppressing ubiquitously viable non-chemical alternatives. We also request DOJ/USDA coordination under the MOU's "inputs" mandate (equipment + technology).

Markets affected: Farm inputs - equipment/technology for weed control, including laser weeding and precision implements, a recognized "input" category under DOJ–USDA MOU (seed, fertilizer, fuel, equipment, pesticides, etc.). Downstream impact on growers' per-acre weed-control costs and agronomic optionality (chemical vs. non-chemical).

Factual background (key points): The lawsuit & injunction - On Oct. 31, 2024, Carbon sued L&A for patent infringement in the E.D. Cal. (No. 2:24-cv-03012). On June 12, 2025, the court granted a preliminary injunction restraining L&A pending trial. Trial is presently set far out (currently Mar. 2027, subject to change). Plaintiff has relied on procedural delays to avoid asserting rationale for infringement on record at a Markman Hearing, and the docket reflects Plaintiff's ever-evolving rationale for this litigation; from supposed infringement to safety to readiness, and now their primary logic for default judgement against L&A is our lack of funds and the illegality of pro se representation by an officer of the LLC. The injunction, 3rd party patent submission that preceded the lawsuit, and the coordinated effort of industry associations and grower-investors in Carbon Robotics has had practical market-exclusion effects for the past many years, and the impact will be especially damaging to small & mid-sized American farmers over the next 1–2 seasons; without viable alternatives to rising seed, chemical, and equipment costs, farm failures and consolidation of specialty and row crop production in the U.S. will accelerate.

Distinct technology & pro-competitive entry: L&A's patent-pending L&Aser is a modular, free-space-combined, blue-laser diode system with a novel, non-obvious, and disparate system architecture to Carbon's G1 and G2 products; the technologies rely on different sources, perception, targeting, and control architecture. Carbon's overly broad patents do not teach the L&Aser, nor do they assert the unique claims made by L&A; namely the exploitation of plant physiology to damage plants with the lowest $/watt allowable by physics so as to achieve high throughput and ubiquitous viability for specialty and row crop farming. L&A's product is a modular tool designed for integration on smaller OEMs/implements and via existing farm equipment retrofits, expanding choice and lowering adoption cost for growers otherwise locked into expensive proprietary seed trait and chemical programs.

Foreclosure mechanisms beyond the lawsuit:

Compute lock-in & OEM restrictions. Multiple OEM and incubator/accelerator agreements in the space (not limited to Carbon) contain de facto exclusivity/switching penalties that make it technically or contractually hard for growers and small OEMs to adopt alternatives or third-party perception stacks. This includes "only Nvidia-GPU" firmware constraints, licensing that penalizes switching, and integration terms that foreclose rivals at the machine level.

Channel & service bundling. Incumbent offerings combine hardware, software, training, updates, and field service in ways that raise rivals' costs and lock growers into a single stack.

Competitive effects & farmer harm - Price & choice: Excluding L&A during commercialization removes a lower-cost, non-chemical path for growers. In high-input systems (e.g., soybeans), herbicide programs typically run $75–$125/acre; L&A's modular offering is designed to undercut the lifecycle cost while reducing chemical dependence and resistance pressures.

Innovation chilling: The injunction and threatened default posture signal to smaller innovators that entry will be met with heavy litigation irrespective of technical differences, narrowing experimentation in non-chemical weed control.

Geographic displacement: L&A is barred from fulfilling delivery of its L&Aser sales in the United States and has moved its technology offshore (Australia) because of the injunction, depriving U.S. growers of affordable alternatives, trials, and delaying domestic learning curves. As a result, American farmers are highly disadvantaged compared to the rest of global agriculture.

Recent procedural posture relevant to notice/due process:

The court clerk (E.D. Cal., Sacramento) continued a hearing from Mon. Oct. 20 to Tue. Oct. 21, 2025, invited the corporate representative to attend by Zoom, and sought email confirmation, which is consistent with a record-clearing step ahead of Carbon's motion to strike testimony on the way to seeking default based on inability to afford counsel.

We understand an LLC cannot appear pro se; the purpose of this submission is to ensure federal enforcement authorities are aware that a procedural default could mask the substantive competition harm described above. (We're not asking DOJ to intervene in the private case; we're asking DOJ to investigate market foreclosure affecting the farm-inputs sector.)

Why this is a DOJ/USDA "inputs" matter, not just a private patent dispute:

The DOJ–USDA MOU (Sept. 29, 2025) specifically targets competition problems in inputs, expressly listing equipment alongside fertilizer, seed, fuel, and pesticides. Laser-weeding equipment and its compute/software ecosystem squarely fit. The MOU enables information-sharing and coordinated enforcement across precisely this category.

The patterns at issue (exclusionary IP use + ecosystem lock-ins) raise prices, limit choice, and suppress non-chemical innovation, contrary to the MOU's farmer-protection goals.

Legal theories DOJ could examine (non-exhaustive):

§2 monopolization / attempted monopolization via sham or overbroad IP assertion and exclusionary design/contracting that forecloses rivals not on the merits but by leveraging chokepoints (incubators/associations/compute/OEMs).

§1 exclusive dealing / de facto exclusivity where OEM or incubator/accelerator terms substantially foreclose access to critical inputs (industry trade events, incubator/accelerators, GPUs/compute hardware, firmware, SDKs, field-service channels) and impose switching penalties.

Raising rivals' costs / ecosystem foreclosure: conditioning features, updates, or reliability on remaining inside a single stack; penalizing adopters who evaluate rival stacks, threatening small & mid-sized growers' access to inputs based on their cooperation with L&A.

Tying/bundling (where applicable) if hardware access or service is conditioned on exclusive use of a particular perception or targeting stack.

Evidence available to DOJ (high-level, public & non-privileged now):

Court filings & orders in E.D. Cal. No. 2:24-cv-03012, including the June 12, 2025 preliminary-injunction order and subsequent minute orders related to representation/default motions.

Product/technical materials publicly describing L&A's modular architecture versus Carbon's system (to assess non-infringing alternatives / distinct design).

Public OEM and incubator/accelerator licensing terms, marketing, and developer documentation evidencing single-vendor constraints or switching penalties.

Grower cost data showing herbicide program costs vs. projected lifecycle costs of non-chemical alternatives (supporting consumer harm).

(Additional materials exist but may contain proprietary or privileged content. We are willing to provide non-public documents to DOJ under appropriate confidentiality or via CID or voluntary access limits that avoid broad privilege waiver.)

Requested DOJ actions:

Open a civil conduct investigation into exclusionary practices in farm-inputs laser-weeding/precision equipment, including Carbon's litigation posture vis-à-vis market structure and any industry trade organizations, incubators, or compute/OEM ecosystem restraints impeding rival stacks.

Coordinate with USDA under the Sept. 2025 MOU to gather market-wide information from growers, OEMs, compute vendors, and distributors about lock-ins and switching penalties.

Issue preservation notices/CIDs as needed to incumbents and key channel partners.

Consider appropriate remedies, including behavioral commitments (e.g., anti-lock-in provisions, interoperability, fair access to accelerators/SDKs/firmware), and any action addressing sham-litigation-based foreclosure if supported by the facts.

Provide whistleblower guidance to industry participants with inside knowledge of anticompetitive restrictions in this stack.

Confidentiality:

We request confidential treatment for competitively sensitive business information and are willing to facilitate secure transmissions. We are not waiving attorney-client privilege; if DOJ needs privileged context, we can discuss limited, targeted access.

Contact:

Chris Laudando (Founder/President)
Laudando & Associates LLC, Chico, CA.
310-968-1178
chris@laudando.com

Time sensitivity: A court hearing currently scheduled for Oct. 21, 2025 (E.D. Cal.) may result in procedural default unrelated to competitive merits. We respectfully ask DOJ to log and acknowledge this complaint promptly and to open initial information-gathering consistent with the USDA–DOJ inputs MOU.